

Privacy Policy

Last Updated: January 4, 2026

This Privacy Policy explains how **OpenTrain AI, Inc.** ("**OpenTrain**," "**we**," "**us**," "**our**") collects, uses, discloses, and otherwise processes information about you when you:

- visit our websites (including www.opentrain.ai and any subdomains),
- create an account or use our marketplace and related services (the "**App**"),
- use our managed services offering,
- communicate with us, or
- interact with us in other ways (collectively, the "**Services**").

This Privacy Policy also describes the choices you may have about your information and how you can contact us.

Quick Summary

- We operate a marketplace and managed service that connects employers and AI teams with freelancers and data labeling vendors.
- We collect information you provide (like profile details, job applications, proposals, payments and tax details) and information automatically collected (like device and usage data).
- We use information to operate the Services, facilitate marketplace interactions, process payments, provide support, improve the Services, and keep the Services safe and secure.

- We share information with other users as needed to run the marketplace (for example, a client needs to see a freelancer's proposal), and with service providers (for example, payment processors and hosting providers).
- You may have privacy rights depending on where you live, including rights to access, delete, correct, or opt out of certain processing (like targeted advertising in some jurisdictions).

1. Who We Are and What This Policy Covers

1.1 The Services

OpenTrain provides a platform where:

- **Freelancers** can create profiles, find opportunities, apply for jobs, communicate with employers, perform work (often in third-party annotation tools), and get paid.
- **Employers / Clients** can create accounts, post jobs, evaluate candidates, hire freelancers, manage work, and pay freelancers.
- **Data labeling vendors / agencies** can create company profiles, respond to project opportunities, submit proposals, and manage vendor relationships.
- **Managed Service customers** can engage OpenTrain to run recruiting, onboarding, project operations, and quality assurance as a service.

1.2 Controller vs Processor (important for business customers)

Data protection laws sometimes distinguish between a "controller" (who decides why and how data is processed) and a "processor" (who processes data on behalf of a controller).

- **OpenTrain as controller:** We generally act as a controller for information such as account registration details, platform usage data, billing

administration, and marketplace operations.

- **OpenTrain as processor:** In some cases, we may process information on behalf of a customer (for example, if a customer uploads or shares datasets or instructions that contain personal data, or if we are managing a project under the customer's direction). When we act as a processor, our processing is governed by the customer's instructions and any applicable data processing terms.

If you are a business customer and need a Data Processing Addendum ("DPA"), you should request one by contacting us (see Section 16).

1.3 Scope

This policy applies to information processed by OpenTrain in connection with the Services. It does not apply to third-party websites, products, or services you may access through the Services (for example, third-party annotation tools or payment providers). Those third parties have their own privacy practices.

2. Definitions

For purposes of this Privacy Policy:

- **"Personal Information"** or **"Personal Data"** means information that identifies, relates to, describes, is reasonably capable of being associated with, or could reasonably be linked to an individual (definitions vary by law).
- **"User Content"** means content submitted through the Services, such as job posts, proposals, messages, attachments, instructions, and work product.
- **"Customer Content"** means content a customer provides or makes available for a project (which may include datasets, prompts, documents, images, audio, video, metadata, and labels or evaluation outputs).
- **"Sensitive Personal Information"** (or **"Sensitive Data"**) means information

treated as sensitive under applicable laws (examples may include government identifiers, biometric identifiers, precise geolocation, account logins, and certain financial information).

3. Information We Collect

We collect information in three main ways: (A) information you provide, (B) information collected automatically, and (C) information from third parties.

3.1 Information You Provide to Us

Depending on how you use the Services, you may provide:

A. Account and Profile Information

- Name, email address, phone number
- Username/handle, profile photo
- Password or authentication credentials (stored in hashed/secured form where applicable)
- User type (freelancer, employer, vendor, or other)
- Location (for example, city, region, country)
- Language preferences
- Professional profile details such as skills, experience, education, certifications, portfolio items, hourly rates, availability, work preferences, and domain expertise

B. Employer and Vendor Account Details

- Company name and details (including team members you add)
- Business contact details and role/title
- Company profile information and project requirements
- Vendor profile details, capabilities, staffing, service descriptions, and

C. Job, Project, and Marketplace Activity

- Job posts, scopes, requirements, budgets, and timelines
- Applications, proposals, bids, screening responses, and interview responses
- Contracts, statements of work, task instructions, and deliverables
- Communications between users (messages, chat content, emails routed through the platform, and related metadata)
- Reviews, ratings, feedback, and dispute-related information

D. Payment, Payout, and Tax Information

We collect information necessary to facilitate payments and comply with tax and financial obligations, such as:

- Billing address and invoice information
- Payment method details (typically handled by payment processors; we may receive partial information such as the last four digits of a card, payment method type, and transaction identifiers)
- Bank account or payout account details for freelancers or vendors (typically handled by payment processors; we may receive confirmation and payout status)
- Tax forms and taxpayer information (for example, W-9/W-8 forms where applicable), and related compliance documentation
- Transaction history, fees, refunds, chargebacks, and payment status

E. Identity Verification, Safety, and Compliance Information

To help keep the Services safe, comply with law, and reduce fraud, we may collect:

- Identity verification information (such as government ID images, selfies, or

verification results) when required or permitted

- Sanctions and compliance screening results (where applicable)
- Information you provide related to trust and safety, complaints, investigations, and policy enforcement
- Information about suspected fraud, abuse, or violations of our policies

F. Customer Support and Other Communications

- Support tickets, emails, call notes, and chat transcripts
- Survey responses, testimonials, or research participation responses
- Event registration information (if applicable)

G. Information You Provide About Others

You may provide information about other individuals, for example if you:

- invite teammates to an employer account,
- refer a friend or colleague,
- provide references,
- submit content that includes information about other people.

If you provide someone else's information, you represent that you have permission to do so.

3.2 Information We Collect Automatically

When you access or use the Services, we may automatically collect:

A. Device and Network Information

- IP address
- Device identifiers and approximate location derived from IP
- Browser type, operating system, device type

- Language and regional settings

B. Usage and Log Information

- Pages or screens viewed, clicks, scrolling, and interactions
- Referring/exit pages and URLs
- Access times, session duration, and crash/error logs
- Authentication and security logs (for example, login times, failed login attempts)

C. Cookies and Similar Technologies

We use cookies, pixels, tags, SDKs, local storage, and similar technologies to:

- operate the Services,
- remember preferences,
- understand usage,
- improve performance,
- support marketing and advertising (where applicable).

See Section 8 for more details.

3.3 Information We Receive From Third Parties

We may receive information from third parties such as:

A. Payment Processors and Financial Partners

- Confirmation of payment method, payment status, payout status
- Fraud signals and compliance flags
- Limited transaction details needed for accounting and support

B. Identity Verification and Compliance Providers

- Verification results (for example, "verified" or "failed")

- Screening results (where applicable)

C. Integrations and Connected Tools

If you connect third-party tools (for example, annotation platforms, ATS tools, file storage, or communication tools), we may receive information from those tools consistent with your settings and the integration's permissions.

D. Marketing and Analytics Partners

We may receive information about how you discovered our Services, campaign performance, and attribution data.

E. Public or Professional Sources

Where permitted by law, we may receive information from public sources (for example, professional networking sites) for recruiting, fraud prevention, or business development.

4. How We Use Information

We use Personal Information for the following purposes:

4.1 Provide and Operate the Services

- Create and maintain accounts
- Enable marketplace functionality (posting jobs, applying, hiring, proposals, vendor submissions)
- Facilitate communications between users
- Provide managed services (including sourcing, onboarding coordination, project operations, and quality workflows)
- Provide integrations and technical features you request

4.2 Payments, Payouts, Fees, and Accounting

- Process payments from employers/clients
- Facilitate payouts to freelancers and vendors
- Calculate and charge platform fees
- Handle refunds, disputes, chargebacks, and payment-related support
- Maintain records for accounting, audits, and tax compliance

4.3 Safety, Security, and Integrity

- Protect the Services and users from fraud, abuse, and security incidents
- Verify identity where appropriate
- Detect and prevent spam, scams, unauthorized access, and other harmful activity
- Enforce our terms, policies, and platform rules

4.4 Customer Support and Communications

- Respond to questions and requests
- Provide service updates, administrative notices, and security alerts
- Send onboarding and instructional communications
- Provide support and troubleshooting

4.5 Improve, Analyze, and Develop the Services

- Understand how users interact with the Services
- Debug, test, and improve functionality
- Develop new features, products, and services
- Conduct analytics and research
- Create aggregated or de-identified insights (where permitted)

4.6 Marketing and Advertising (where applicable)

- Send marketing emails (you can opt out at any time)
- Promote our Services and measure campaign effectiveness
- Show ads or run remarketing campaigns on third-party platforms (where applicable)

4.7 Legal Obligations and Compliance

- Comply with applicable laws and regulations
- Respond to lawful requests and legal process
- Establish, exercise, or defend legal claims

4.8 Legal Bases for Processing (for EEA/UK and similar jurisdictions)

If you are in the EEA, UK, or another region that requires a legal basis, we generally rely on:

- **Contract:** to provide the Services you request (for example, account creation, marketplace participation, payments)
- **Legitimate interests:** to secure, improve, and market the Services, prevent fraud, and support business operations (balanced against your rights)
- **Consent:** where required (for example, certain cookies or marketing in some jurisdictions)
- **Legal obligation:** to comply with laws (for example, tax, accounting, and compliance obligations)

5. How We Disclose and Share Information

We may disclose Personal Information in the following ways:

5.1 Sharing Between Marketplace Users

The Services are designed to facilitate connections and transactions among

users. Depending on your role and settings:

A. Employers/Clients may see information about Freelancers and Vendors

- Freelancer and vendor profile information (for example, name or display name, photo, skills, portfolio, rates, availability, location at a general level)
- Applications, proposals, screening responses, and interview information
- Communications and work product exchanged through the Services
- Reviews/ratings and marketplace history (as applicable)

B. Freelancers and Vendors may see information about Employers/Clients

- Job posts and project descriptions
- Employer profile information (for example, company name, industry, and general location)
- Communications, task instructions, and feedback
- Payment and project status information relevant to the engagement (not full payment credentials)

C. Public or Semi-Public Information

Some profile elements or marketplace content may be visible to others (or indexed by search engines) depending on how your profile and content are configured. You should not post information you do not want shared.

5.2 Service Providers and Contractors

We share information with third-party service providers that help us run the Services, such as:

- Cloud hosting and infrastructure
- Customer support tools
- Email and communications providers

- Analytics providers
- Security, fraud prevention, and identity verification providers
- Payment processors and payout providers
- Compliance and auditing providers

These providers are authorized to process Personal Information only as needed to provide services to OpenTrain and are typically bound by confidentiality and data protection obligations.

5.3 Integrations and Connected Tools

If you choose to connect the Services to a third-party tool or platform, we may share information with that tool as directed by you and the integration's permissions. You can often disconnect integrations in your settings or by contacting us.

5.4 Professional Advisors

We may share information with professional advisors such as lawyers, auditors, accountants, and insurers in connection with our business operations.

5.5 Legal, Safety, and Rights Protection

We may disclose information if we believe disclosure is necessary to:

- comply with law, legal process, or government requests,
- enforce our terms and policies,
- investigate and prevent fraud or security issues,
- protect the rights, property, and safety of OpenTrain, our users, or others.

5.6 Business Transfers

If we are involved in a merger, acquisition, financing, reorganization, bankruptcy,

or sale of assets, information may be transferred as part of that transaction, subject to standard confidentiality protections.

5.7 Advertising Partners (where applicable)

We may share limited information (such as identifiers and device/usage data) with advertising partners to measure and improve marketing campaigns and, where allowed, to support targeted advertising. You can opt out of certain forms of sharing as described in Section 9 and Section 11.

5.8 With Your Direction or Consent

We may share information when you request or consent to such sharing.

6. Customer Content, Project Data, and Confidential Information

Because OpenTrain supports data labeling and AI training work, some projects may involve sensitive or confidential data. We address this as follows:

6.1 Customer Content

Customers may provide Customer Content (datasets, instructions, prompts, files, and related materials) to enable freelancers or vendors to perform work. Customer Content may include personal data, confidential information, or proprietary materials.

6.2 How We Process Customer Content

We may process Customer Content to:

- facilitate project execution,
- enable collaboration and quality assurance,
- provide managed service operations,

- maintain the security and integrity of the Services,
- comply with legal obligations.

6.3 Limited Access and Controls

We take reasonable steps designed to limit access to Customer Content to:

- authorized customer users,
- authorized freelancers/vendors assigned to the project,
- OpenTrain personnel and contractors who need access to operate the Services or provide managed services.

6.4 Customer Responsibilities

If you are a customer, you are responsible for:

- ensuring you have appropriate rights and legal bases to provide Customer Content to OpenTrain and to assigned freelancers/vendors,
- ensuring your instructions are lawful,
- not uploading or sharing Customer Content that violates applicable law or your contractual obligations to others.

Freelancer/Vendor Responsibilities

If you are a freelancer or vendor, you are responsible for:

- handling Customer Content according to project instructions and applicable confidentiality obligations,
- not using Customer Content for purposes unrelated to the project,
- following security requirements communicated to you.

7. Data Retention

We keep Personal Information for as long as reasonably necessary to:

- provide the Services,
- maintain your account (for as long as it is active),
- comply with legal obligations (for example, tax, accounting, dispute resolution),
- enforce agreements, and
- resolve disputes.

Retention periods can vary depending on the type of information and the purpose for which it is processed. We may retain certain information even after account closure where required or permitted by law (for example, to prevent fraud, maintain financial records, or comply with legal obligations). We may also retain de-identified or aggregated information for longer periods.

8. Cookies and Similar Technologies

8.1 What We Use

We use cookies and similar technologies such as pixels, tags, SDKs, and local storage. These technologies may be set by us ("first-party") or by third parties ("third-party").

8.2 Why We Use Them

We may use these technologies for:

- **Strictly necessary purposes:** to operate the Services, maintain sessions, and support security
- **Functional purposes:** to remember preferences and settings
- **Analytics purposes:** to understand usage and improve performance

- **Advertising purposes:** to measure marketing and support targeted advertising (where applicable)

8.3 Your Choices

You can manage cookies through:

- browser settings (including deleting or blocking cookies),
- cookie banners or preference tools we may provide,
- opt-out tools provided by third parties (for example, some analytics and advertising providers).

Blocking some cookies may impact functionality.

9. Advertising, Analytics, and “Do Not Sell or Share” Signals

9.1 Analytics

We may use analytics services to understand how users interact with our Services. These services may collect information such as IP address, device identifiers, and usage events.

9.2 Targeted Advertising (where applicable)

We may partner with advertising and measurement providers to:

- show ads for OpenTrain on third-party platforms,
- measure ad performance,
- build audiences for marketing (for example, remarketing).

In some jurisdictions, sharing identifiers for these purposes may be considered a “sale” or “sharing” of Personal Information even if no money is exchanged.

9.3 Opt Out of Targeted Advertising and “Sale/Share” (where applicable)

Where required, you may opt out of certain types of sharing by:

- using a “Do Not Sell or Share My Personal Information” option on our website (if provided),
- adjusting cookie preferences (if available),
- enabling browser-based opt-out signals recognized under applicable law (see below),
- contacting us (see Section 16).

9.4 Global Privacy Control and Similar Signals

Some browsers and extensions provide an opt-out preference signal (for example, Global Privacy Control). Where required by applicable law, we will treat a valid signal as a request to opt out of certain processing such as sale/share for cross-context behavioral advertising.

10. Security

We implement reasonable administrative, technical, and organizational safeguards designed to protect Personal Information. However, no system can be guaranteed to be 100 percent secure. You are responsible for maintaining the confidentiality of your login credentials and for any activity under your account.

11. Your Choices and Rights

Depending on where you live, you may have certain rights regarding your Personal Information.

11.1 Account Settings

You may be able to access, update, or correct certain account and profile information through your account settings.

11.2 Marketing Communications

You can opt out of marketing emails by using the unsubscribe link in those emails. You may still receive non-marketing communications, such as account, billing, security, and service-related messages.

11.3 Data Subject Rights (EEA/UK and Similar Jurisdictions)

If you are in the EEA or UK (or another jurisdiction with similar rights), you may have the right to:

- request access to your Personal Data,
- request correction or deletion,
- request restriction of processing,
- object to processing,
- request data portability,
- withdraw consent (where processing is based on consent),
- lodge a complaint with a supervisory authority.

11.4 U.S. State Privacy Rights (varies by state)

In certain U.S. states, you may have rights such as:

- the right to access and obtain a copy of personal data,
- the right to delete personal data,
- the right to correct inaccuracies,
- the right to opt out of targeted advertising,
- the right to opt out of certain profiling,

- the right to opt out of sale of personal data (as defined by law),
- the right to appeal a decision we make regarding your request (in some states).

11.5 California Privacy Notice (CCPA/CPRA)

This section applies to California residents to the extent OpenTrain is subject to the California Consumer Privacy Act as amended by the California Privacy Rights Act (collectively, "CCPA/CPRA").

A. Categories of Personal Information We Collect

In the last 12 months, we may have collected the following categories:

- Identifiers (name, email, IP address, account IDs)
- Personal information categories described in California Civil Code 1798.80 (for example, billing information)
- Commercial information (transactions, payment status)
- Internet or other electronic network activity (usage, logs, device data)
- Geolocation data (approximate location derived from IP; and potentially more precise if you enable it)
- Professional or employment-related information (work history, skills, profile details)
- Education information (if you provide it)
- Inferences drawn from other information (for example, matching, risk signals, or recommendations)

We may also collect **Sensitive Personal Information** such as account login credentials, government identifiers (if used for verification or tax), and financial account details (typically handled by payment processors). We use and disclose Sensitive Personal Information only as permitted by law and as reasonably

necessary to provide the Services.

B. Sources of Personal Information

We collect Personal Information from:

- you directly,
- your devices and browser automatically,
- service providers (for example, payment processors and verification providers),
- other users (for example, when they submit feedback or communications involving you),
- public or professional sources where permitted.

C. Purposes for Collection and Use

We use Personal Information for the purposes described in Section 4.

D. Disclosures of Personal Information

We may disclose the categories of Personal Information described above to:

- other users in connection with marketplace operations,
- service providers and contractors,
- professional advisors,
- government entities and law enforcement where required,
- third parties in connection with business transfers.

E. Sale or Sharing

We do not sell Personal Information for money. However, we may share identifiers and device/usage data with advertising partners for cross-context behavioral advertising, which may be considered a "sale" or "sharing" under CCPA/CPRA. You may opt out as described in Section 9.

F. Your California Rights

Subject to certain exceptions, you may have the right to:

- know what Personal Information we collect, use, disclose, sell, or share,
- request deletion of Personal Information,
- request correction of inaccurate Personal Information,
- opt out of sale or sharing,
- limit the use and disclosure of Sensitive Personal Information (where applicable),
- not receive discriminatory treatment for exercising your rights.

G. Submitting Requests

You (or an authorized agent) may submit a request by contacting us using the methods in Section 16. We may need to verify your identity before fulfilling certain requests.

12. Children's Privacy

The Services are not intended for individuals under 18. We do not knowingly collect Personal Information from children. If you believe a minor has provided us Personal Information, contact us so we can take appropriate steps.

13. Third-Party Services and Links

The Services may link to third-party websites, tools, and services (including third-party annotation and evaluation platforms). We are not responsible for the privacy practices of those third parties. Please review their policies before providing information to them.

14. International Data Transfers

OpenTrain is based in the United States and may process and store information in the United States and other countries. If you access the Services from outside the United States, you understand that your information may be transferred to and processed in jurisdictions that may not provide the same level of data protection as your home jurisdiction.

Where required, we use appropriate safeguards for cross-border transfers (for example, standard contractual clauses).

15. Changes to This Privacy Policy

We may update this Privacy Policy from time to time. We will post the updated version on our website and update the "Last Updated" date above. If changes are material, we may provide additional notice (for example, by email or an in-app notice) as required by law.

16. Contact Us

If you have questions or requests about this Privacy Policy or our privacy practices, contact:

OpenTrain AI Attn: Privacy Team Email: privacy@opentrain.ai General: contact@opentrain.ai Support: support@opentrain.ai

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